

IN THE [COURT HAVING JURISDICTION IN THIS MATTER – CRIMINAL, CIRCUIT OR GENERAL SESSIONS COURT; CONFIRM FROM YOUR OWN RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN RECORD] COUNTY, STATE OF TENNESSEE

STATE OF TENNESSEE,
Plaintiff,

v.

JOHN DOE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

MOTION FOR PARTIAL REMOVAL OF THE RECORDS OF COUNTS THAT DID NOT RESULT IN A CONVICTION, PURSUANT TO T.C.A. § 40-32-106(c)(2)

STATUTORY AUTHORITY

T.C.A. § 40-32-106(c)(2) – The partial database removal provision created by Public Chapter 268 of 2025. It answers the mixed-count case where some counts were dismissed as part of a plea and others produced a conviction.

T.C.A. § 40-32-106(a) – The non-conviction grounds, against which each count in the schedule is identified.

T.C.A. § 40-32-102(d) – The court forwards the order to the Tennessee Bureau of Investigation within 30 days of entry.

T.C.A. § 40-32-110 – The chapter's restoration provision.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court having jurisdiction in the previous action in Sample County (synthetic sample venue), State of Tennessee, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this motion occurred in Sample County (synthetic sample venue), State of Tennessee.

II. PARTIES

3. Petitioner is JOHN DOE, whose address is 1000 Sample Street, Nashville, TN 37203.

4. Plaintiff is the State of Tennessee.

III. FACTS AND CASE HISTORY

5. On or about 03/22/2023, Petitioner was charged with Multi-count case: counts 1 and 2 dismissed as part of a plea, count 3 resulting in a conviction (synthetic sample charge) by Sample City Police Department (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. On 09/19/2023, the matter was resolved with the following disposition: Counts 1 and 2 dismissed; count 3 resulted in a conviction that this Motion does not reach (synthetic sample disposition).

8. The offense grade was: Mixed – counts 1 and 2 misdemeanour, count 3 misdemeanour of conviction (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for partial removal on the following basis: partial removal under T.C.A. § 40-32-106(c)(2) of the records of the counts that did not result in a conviction.

10. Count-by-count schedule as Petitioner reads it from the clerk's record (synthetic sample answers): Count 1 – dismissed, no conviction, included in this Motion. Count 2 – dismissed, no conviction, included in this Motion. Count 3 – conviction entered, excluded from this Motion and untouched by it.

11. Petitioner understands that this Motion seeks partial removal only and that the count of conviction is not reached by it.

12. Petitioner makes no assertion about whether the relief reaches paper records as well as electronic databases; that question is left to this Court.

13. State control number: [STATE CONTROL NUMBER – READ FROM YOUR OWN CRIMINAL HISTORY AND ENTER IT HERE BEFORE FILING].

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

(a) Grant this Motion and enter an Order directing the partial removal of the records of the counts identified in the schedule below that did not result in a conviction in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to apply the ordered partial removal to all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this motion are true and correct to the best of my knowledge, information, and belief.

JOHN DOE

1000 Sample Street, Nashville, TN 37203

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

ATTACHMENTS

Attachments submitted with this motion:

- [ANY DOCUMENT THE PARTICIPANT CHOOSES TO FILE IN SUPPORT – PARTICIPANT ENCLOSES COPIES ONLY]

Prepared by petitioner using LegalEase RCAP. This is not an official court form.